

26NNCV01474 26NNCV01474

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-03

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Case Number: 26NNCV01474 Hearing Date: September 3, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

DAVIT GHANDIMYAN,

Plaintiff,

vs.

CONSUELO BEATRIZ CASILLAS, an

individual; RODOLFO RUIZ, an individual; and DOES 1-50 Inclusive,

Defendants.

Case

No.:

26NNCV01474

Hearing

Date:

September

3, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO COMPEL DEPOSITION

MOVING PARTY: Defendants and Cross-Complainants

Consuelo Beatriz Casillas and Rodolfo Ruiz

RESPONDING PARTY: Plaintiff and Cross-Defendant Davit

Ghandimyan

The Court

considered the moving papers, opposition, and reply filed in connection with the instant motion.

BACKGROUND

On March 2, 2026,

Plaintiff Davit Ghandimyan ("Plaintiff") brought this action against Defendants Consuelo Beatriz Casillas ("Casillas") and Rodolfo Ruiz ("Ruiz") (collectively, "Defendants"), alleging causes of action for general and motor vehicle negligence. The causes of action arise out of a motor vehicle collision between Plaintiff and Casillas on the eastbound 210 freeway in Montrose, California.

On April 20, 2026,

Defendants filed a cross-complaint against Plaintiff, alleging causes of action for general and motor vehicle negligence.

On April 20, 2026, the

Court dismissed Plaintiff's complaint with prejudice.

On June 3, 2026, the

Court found the instant case and Los Angeles Superior Court case, Seungmin Yoo vs. Consuelo Casillas, et al., case no. 25NNCV07027, related within the meaning of California Rules of Court, rule 3.300(a) and deemed case no. 25NNCV07027 the lead case.

On July 21, 2026,
Defendants filed the instant motion to compel Plaintiff's deposition.

On August 20, 2026,
Plaintiff filed an opposition.

On August 27, 2026,
Defendants filed a reply.

LEGAL STANDARD

"The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action... to attend and to testify, as well as to produce any document."
(Code Civ. Proc., § 2025.280, subd. (a).) 22222

Code of Civil Procedure section 2025.450, subdivision (a),
provides: 2222222

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. 22222

The motion shall "(1) set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice" and "(2) be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." 2 (Code Civ. Proc. § 2025.450, subd. (b)(2).) 222

DISCUSSION

Defendants move for an order from the Court compelling Plaintiff's deposition.

A. Meet
and Confer

Defendants' counsel purports to have met and conferred numerous times concerning the scheduling of Plaintiff's deposition. (Sese Decl., ¶ 8.) Defendants' counsel attached to her declaration a series of back-and-forth email correspondences with Plaintiff's counsel regarding scheduling the deposition. (Sese Decl., ¶¶ 9-10, Exhs. B-C.) As Plaintiff notes in his opposition to the instant motion, there are no efforts to meet and confer telephonically. (Opp., 6:11-12.) Plaintiff's counsel declares that Defendants' counsel never attempted to address the underlying dispute telephonically. (Birch Decl., ¶ 29.) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) Defendants show no efforts to meet and confer in person, telephonically, or by videoconference.

The Court notes that Plaintiff appears agreeable to deposition but simply requests that the deposition date work within Plaintiff's counsel's work and travel schedule. (Birch Decl., ¶ 26.) Plaintiff's counsel has offered potential deposition dates to Defendants' counsel, but the parties cannot agree on a date. (See Birch Decl., ¶¶ 12-13, 18, 27, Exhs. F-G.)

Therefore, the Court continues the hearing on the motion and orders the parties to meet and confer in person, telephonically, or by videoconference within twenty (20) days of this order and file a joint statement with the Court advising on the parties' meet and confer efforts and the status of the underlying discovery dispute.

CONCLUSION

Based on the foregoing, the Court CONTINUES the hearing on Defendants Consuelo Beatriz Casillas and Rodolfo Ruiz's motion to compel Plaintiff Davit

Ghandimyan's deposition.

The Court orders the Plaintiff and Defendants' counsel to meet and confer in person, telephonically, or by videoconference within twenty (20) days of this order and file a joint statement with the Court at least five (5) days prior to the next hearing date advising the Court on the parties' meet and confer efforts and the status of the underlying discovery dispute.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 3, 2026

Sarah
J. Heidel

Judge
of the Superior Court